

Court No. - 7

Case :- WRIT - C No. - 3425 of 2006

Petitioner :- Akhalak Ahmad

Respondent :- Dakshinanchal Vidyut Vitaran Nigam Ltd. Thru' G.M. & Others

Counsel for Petitioner :- Swapnil Kumar

Counsel for Respondent :- W.H. Khan, S.C.

Hon'ble Mrs. Sunita Agarwal, J.

List correctly showing the name of Shri Baleshwar Chaturvedi as counsel for the Nigam in the next cause list.

Order Date :- 6.9.2014

Atul kr. sri.

Court No. - 30

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Respondent :- Dakshinanchal Vidyut Vitaran Nigam Ltd. Thru G.M. And Others

Counsel for Petitioner :- Swapnil Kumar

Counsel for Respondent :- W.H. Khan, Baleshwar Chaturvedi, S.C.

Hon'ble Pankaj Bhatia, J.

Heard Sri Sudhanshu Kumar, Advocate holding brief of Sri Swapnil Kumar, counsel for the petitioner and Sri Vikas Kumar Chaubey, Advocate brief of Sri Baleshwar Chaturvedi, counsel for the respondents.

The present petition has been filed challenging the decision of the Appellate Committee dated 22.6.2005 (Annexure-4 to the writ petition) as well as the assessment notice dated 31.12.2003 issued by the respondent no. 3.

The counsel for the petitioner submits that on the basis of some checking report carried out on 16.12.2003, a provisional assessment bill was sent to the petitioner, however, a copy of the checking report was never sent to the petitioner. The petitioner preferred an appeal and a specific ground was taken that the assessment report has never been served upon the petitioner. The Appellate Committee dismissed the appeal solely relying upon the report, based upon which, the provisional assessment order was passed.

The next submission of the counsel for the petitioner is that the provisions of Section 126 were attracted for assessment. In terms of the said provisions, it is incumbent that the order of the provisional assessment be served upon the person in occupation, who shall be given an opportunity of filing a reply

and then steps be taken for final assessment. Section 127 of the said Act provides for an appeal against the order of the final assessment. The petitioner claims that the appeal was filed against the provisional assessment on account of wrong legal advice, although the appeal was not maintainable under Section 127 of the Act.

The next submission of the counsel for the petitioner is that the Electricity Act, 2003 came into force w.e.f. 10.6.2003, however, the Rules in terms of the powers conferred under the Act were framed in the year 2005 and thus there were no Rules for the period 2003 to 2005 and even in terms of the relevant repeal clause, only the Rules framed pertaining to Sections 67 and 69 were saved. He thus submits that in the absence of the Rules pertaining to theft assessment, the principles of natural justice would be applicable and in terms thereof it was incumbent upon the respondent authorities to have supplied a copy of the survey to enable the petitioner to effectively give a reply to the provisional assessment. He has further placed reliance on Rule 8.2 (X) (h) of the Electricity Supply Code, 2005 to impress that even in terms of the Electricity Supply Code, 2005 in terms of a decision of a Court, if the theft is not established, the charges levelled and the assessment made by the licensee are bound to be withdrawn in writing and the connection is bound to be restored.

The counsel for the petitioner has stated on oath in para 8 of the rejoinder affidavit that a final report has been filed in the F.I.R., which was lodged against the petitioner alleging unauthorized theft of electricity.

The present case can be decided on a narrow compass as to whether principles of natural justice were violated on account of non-supply of survey carried out in the premises of the

petitioner on 16.12.2003.

As the Rules were not in vogue, and the Electricity Supply Code, 2005 makes a specific provision in this regard, the present writ petition is disposed off with direction to the Electricity Authority to supply a copy of the survey report to the petitioner. The petitioner shall have three weeks thereafter to file his objections to the provisional assessment. He shall also be at liberty to file the copy of the final report in his favour and the Assessment Authority is directed to pass an order in view of spirit of Clause 8.2 (X) (h) of the Electricity Supply Code, 2005 and after considering the objection of the petitioner in this regard.

In view of the directions given hereinabove, the Appellate Order dated 15.2.2005 served through letter dated 22.6.2005 (Annexure-4 to the writ petition) is quashed. The provisional order passed against the petitioner shall be subject to the outcome of decision in terms of the direction given in the order.

The writ petition is disposed off in terms of the said order.

Order Date :- 22.1.2020
SR